

		unless the court finds that the default or dismissal was not in fact caused by the attorney’s mistake, inadvertence, surprise, or neglect.” (Code Civ. Proc. § 473, subd. (b).) Relief is mandatory when a complying affidavit is filed, even if the attorney’s neglect was inexcusable. (<i>Metro. Serv. Corp. v. Casa de Palms, Ltd.</i> (1995) 31 Cal.App.4th 1481, 1487.) Here, the Court finds Plaintiff is entitled to relief under the mandatory provision of CCP section 473(b). Plaintiff’s counsel has admitted fault for the dismissal and has supported the application with a declaration attesting to the same. (ROA 52, 54.) Specifically, Plaintiff’s counsel, Pasha Vafaei, attests that the OSC was missed due to the handling attorney leaving the firm prior to the OSC hearing date and not properly calendaring the OSC hearing date. Mr. Vafaei further attests that he was “surprised and concerted” when he received the Court’s minute order dismissal the case, and apologizes for the oversight. (Vafaei Decl. at ¶¶ 2-4, 7.) The Clerk is directed to vacate the dismissal, without prejudice, entered on April 7, 2026 (ROA 48). A Case Management Conference and Order to Show Cause re: Dismissal (for Plaintiff’s failure to appear at the Case Management Conference) are scheduled for [DATE] at 09:00 AM in Department N18. Plaintiff is ordered to give notice of the ruling.
4.	2024-1396920 Centennial Bolt, Inc. vs. Cordova Bolt, Inc.	Case Management Conference The unopposed general and special demurrer by Cross-Defendants Centennial Bolt, Inc. and Mark Cordova (collectively, “Cross-Defendants”) to the eighth cause of action alleged in the First Amended Cross-Complaint (“FACC”) filed by Cordova Bolt, Inc. (“Cordova Bolt”) is overruled in part and sustained in part. As an initial matter, the Court notes Cordova Bolt did not expressly identify what species of fraud is alleged in the eighth cause of action for fraud. “The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or ‘scienter’); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (<i>Lazar v. Superior Court</i> (1996) 12 Cal.4th 631, 638.)

Every element of fraud must be pleaded with specificity. The particularity requirement for fraud requires the pleading of facts showing how, when, where, to whom, and by what means the representations were made. (*Stansfield v. Starkey* (1990) 220 Cal. App. 3d 59, 73.) This is to provide the defendant with notice and to give the court enough information to assess whether there is a foundation for the charge of fraud. (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal. 3d 197, 216.) The requirement of specificity in a fraud action against a corporation requires the plaintiff to allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written. (*Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157.) Nonetheless, "[l]ess specificity is required when it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy." (*Committee on Children's Television*, 35 Cal. 3d at 216 [citation and internal quote marks omitted].)

Cordova Bolt did not allege sufficient facts with the required particularity to state this cause of action against Mark Cordova or Centennial Bolt. Accordingly, the demurrer is sustained.

Cordova Bolt did not oppose the demurrer and did not show how the FACC could be properly amended. (*See, Hendy v. Losse* (1991) 54 Cal.3d 723, 742.) In addition, failure to oppose the demurrer may be construed as having abandoned the claims. (*See, Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20.) Furthermore, amendments after a special motion to strike has been granted is limited. "A plaintiff or cross-complainant may not seek to subvert or avoid a ruling on an anti-SLAPP motion by amending the challenged complaint or cross-complaint in response to the motion." (*JKC3H8 v. Colton* (2013) 221 Cal.App.4th 468, 477-478.) A pleading that "is stricken by a successful anti-SLAPP motion cannot try again with an amended complaint. There is no such thing as granting an anti-SLAPP motion with leave to amend." (*Dickinson v. Cosby* (2017) 17 Cal.App.5th 655, 676.) An "anti-SLAPP is designed as a final remedy with no second chances." (*Id.*, at 679.) However, claims that are "unaffected by the anti-SLAPP motion might be able to go forward." (*Newport Harbor Ventures, LLC v. Morris Cerullo World Evangelism* (2018) 4 Cal.5th 637, 646.)

Cordova Bolt has not shown the eighth cause of action may be properly amended and has not shown how an amendment would not involve allegations that the Court previously found was protected conduct and/or speech. Accordingly, unless Cordova Bolt appears

		and shows how the eighth cause of action may be properly amended, leave to amend is denied. A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (<i>Khoury v. Maly’s of California, Inc.</i> (1993) 14 Cal.App.4th 612, 616.) Errors and confusion created by “the inept pleader” are to be forgiven if the pleading contains sufficient facts entitling plaintiff to relief. (<i>Saunders v. Cariss</i> (1990) 224 Cal.App.3d 905, 908.) A demurrer for uncertainty should be overruled if the facts are presumptively within defendant’s knowledge. (<i>Khoury</i>, 14 Cal.App.4th at 616.) A party attacking a pleading on “uncertainty” grounds must specify how and why the pleading is uncertain, and where that uncertainty can be found in the challenged pleading. (<i>Fenton v. Groveland Community Services Dept.</i> (1982) 135 Cal.App.3d 797, 809, disapproved on other grounds in <i>Katzberg v. Regents of the University of California</i> (2002) 29 Cal.4th 300.) Here, the eighth cause of action is not so unintelligible that Cross-Defendants cannot reasonably respond. Any ambiguities can be clarified through discovery. (<i>Lickiss v. Financial Industry Regulatory Authority</i> (2012) 208 Cal.App.4th 1125, 1135; <i>Khoury</i>, 14 Cal.App.4th at 616.) Accordingly, the special demurrer is overruled. Cross-Defendants shall give notice.
5.	2026-1559626 Hernandez vs. Garduno	Plaintiffs’ Motion to Strike the Proof of Service is granted. Plaintiffs filed a Declaration of Diligence re: Francisco Garduno (ROA 10) under the wrong event, as a “Proof of Service,” and then re-filed the same document under the correct event, as a “Declaration of Diligence” that same day (ROA 12.) The Court has inherent discretion under CCP section 128, to “preserve and enforce order in its immediate presence” and to “provide for the orderly conduct of proceedings before it.” (Code Civ. Proc., § 128, subd. (a)(1), (a)(3).) In the Court’s exercise of this discretion, the Clerk is hereby ordered to strike the document erroneously filed as a “Proof of Service,” on 5/13/26 (ROA 10).
6.	2025-1529605 Newport Medical Solutions vs. Orthopedic Institute of Newport Beach	<i>No tentative.</i>